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TENTATIVE RULING

Defendant Berkeley View, LLC's Motion for Relief from Default is GRANTED.

Plaintiff Adam Corlin's Motion for Appointment of Receiver to Manage Defendant Berkeley View, LLC and Its Real Property Located at 825 Berkeley Street, Santa Monica, CA 90403 is DENIED.

Moving parties to give notice.

Defense counsel has provided a sworn affidavit stating that he was communicating by email with Plaintiff's counsel about this action without any response from Plaintiff's counsel until February 2, 2026, after the default had already been taken. (Mot., Chodos Decl. ¶¶ 9-14.) *Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 135, cited by Defendant, makes clear "that an attorney has an ethical obligation to warn opposing counsel that the attorney is about to take an adversary's default." Put simply, there is no indication that Plaintiff's counsel communicated with defense counsel before taking Defendant's default. Moreover, defense counsel was attempting to communicate with Plaintiff's counsel without response, such that defense counsel had no reason to believe that Defendant's default would be taken, such that it could also be said to be a surprise to defense counsel such that it is required to set aside Defendant's default. For that reason, Defendant Berkeley View, LLC's Motion for Relief from Default is GRANTED. The Court does not impose any conditions on this order, as Plaintiff asks the Court to do, because, again, Plaintiff improperly sought the default in violation of Plaintiff's counsel's ethical obligation to warn defense counsel before doing so.

Plaintiff Adam Corlin's Motion for Appointment of Receiver to Manage Defendant Berkeley View, LLC and Its Real Property Located at 825 Berkeley Street, Santa Monica, CA 90403

Plaintiff moves the Court for an order appointing Kevin A. Singer of Receivership Specialists as the receiver for Defendant, with its sole asset being the property at 825 Berkeley Street in Santa Monica, for the receiver to take control of and manage the entity and the property to administer Defendant's business, including business related to the property.

Request for Judicial Notice

Defendant requests judicial notice of five court records from Los Angeles Superior Court Case No. SC123103 (Corlin v. Cooper) and the appeal related to the same action (Corlin v. Bry, Case No. B315560). Defendant's request is GRANTED pursuant to Evidence Code section 452, subdivision (d).

Plaintiff requests that the Court take the drastic action of appointing a receiver to take over Defendant because Plaintiff seeks to sell the property subject to Plaintiff's lien and to prevent unjust enrichment to Defendant Richman Bry, who has been dismissed from this action. Put simply, the Court is not inclined to appoint a receiver when it appears at this juncture that Plaintiff is seeking to litigate an action that was or should have been adjudicated in a prior action. The prior action and the appellate case for the same focused on Plaintiff's argument that he had a 50-50 partnership in a real estate venture with his deceased friend Glenn Cooper. (Req. for Judicial Notice, Exs. 1-2.) This Court found that there was no basis to conclude that Plaintiff and Cooper were in a partnership, so it was improper to conclude that the property was partnership property, despite Plaintiff showing that he and Cooper had an agreement to split the proceeds from the exploitation of the developed project. (Req. for Judicial Notice, Ex. 1.) The appellate court also stated that Plaintiff was not a member of Defendant, there was no partnership between Plaintiff and Cooper, and the property was not a partnership asset. (Req. for Judicial Notice, Ex. 2.)

Perplexingly, Plaintiff now brings this action to protect his 50% equity interest in the property on the ground that he and Cooper created Defendant to purchase and hold title to the property, and Defendant holds title to the property for the benefit of the joint venture partners, including Plaintiff. (Compl. ¶¶ 35-36.) Given this Court's and the appellate court's prior conclusions, it would seem that this action is barred by res judicata. The doctrine of res judicata is described as follows:

Res judicata, or claim preclusion, prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them. Under the doctrine of res judicata, a judgment for the defendant serves as a bar to further litigation of the same cause of action. To operate as a bar, a judgment must be final, on the same claim or cause of action, between the same parties, and must be an adjudication on the merits.

(Hi-Desert Medical Center v. Douglas (2015) 239 Cal.App.4th 717, 731, ellipses, citations, brackets, and quotation marks omitted.) While the parties may be different, i.e., Plaintiff brings this action against Defendant and Bry's lender, it certainly appears that the claims are the same or should have been raised in the prior action, the claims were adjudicated in a final judgment on the merits, and those parties are in privity with Bry. Plaintiff's argument that his equitable trust claim could not have been litigated in the prior action is not well taken, as it appears to just be a new way to allege the same thing, specifically that Plaintiff had a partnership with Cooper that now gives him 50% interest in the property as a partnership asset.

Again, the appointment of a receiver is a drastic remedy. The Court is not inclined to order appointment of a receiver where it appears that a party's claims may be entirely barred by res judicata. For that reason, Plaintiff Adam Corlin's Motion for Appointment of Receiver to Manage Defendant Berkeley View, LLC and Its Real Property Located at 825 Berkeley Street, Santa Monica, CA 90403 is DENIED.